

DECISIONS · 18 MAY 1998

Judgment — Paris Commercial Court

TYPE	COURT	DATE	PARTIES
Court decision	The Paris Commercial Court	18 May 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

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Overview: judgment of the first chamber of the Paris Commercial Court joining two sets of proceedings. On one side SEBOL, the company B et O, Bernard Collorafi and, as voluntary intervener, LES PINS; on the other McDonald's France.

Key points

The judgment recalls the facts: licence and lease-management (location-gérance) agreement signed in August 1987 for the Antibes business (Carrefour shopping arcade), assigned to SEBOL, then a second agreement in October 1996 (Antibes Nord, entrusted to B et O) and a third in 1997 (Antibes Ouest, assigned to LES PINS). Collorafi and his companies had summoned McDonald's in June 1997 for compensation for damage they attributed to performance in bad faith. As the fees were not paid, McDonald's terminated the three agreements on 2 January 1998, then sought a finding of automatic termination and eviction. The Court orders the companies to pay the unpaid fees and an occupation indemnity, as well as 50,000 F under article 700 of the NCPC, and orders provisional enforcement subject to a bank guarantee.

Significance

A first-instance decision that rules on the eviction and fees aspect in favour of McDonald's; it opens the way to the appeal and to the subsequent expert assessment on the merits of the dispute.

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Source: bernardcollorafi.org/en/documents/judgment-paris-commercial-court-termination-eviction-fees-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.